

RETIREMENT DEED

OF

M/S. GLASS WALL SYSTEMS



General Stamp Office Mumbai

No. 116

11 MAR 2008

Proper Officer

Smt. L. B. Sarmalkar

श्री. विजय गोविंदजी रावकर

★ परवाना धारक मुद्रांक विक्रेता ★

द. नं. ४, न्यू मोंची निपडींग, अंबाजी धाम मंदिराजवळ

एम. जी. रोड, मुलुंड (प.)

क्रमांक ९८९१ दिनांक

सर्वश्री/श्री/श्रीमती

पाना रु.

परीक्षा न्यायकेतु मुद्रांक वेळापत्रिका

२९६७८९९९ परवाना धारक मुद्रांक विक्रेता

RETIREMENT DEED

M/S. GLASS WALL SYSTEMS

ARTICLES OF AGREEMENT made on this 31st day of March, 2008
BETWEEN (1) (i) SHRI HEMRAJANI JAWAHAR HARIRAM of Navi
Mumbai, a Hindu Inhabitant (ii) SHRI CHOUDHARI KAMLESH ARJUN of
Mumbai, a Hindu Inhabitant together being the party of the First Part
(hereinafter referred to as the "Continuing Partners") AND (2) SHRI
DAVE KAILASH REWASHANKAR of MUMBAI a Hindu Inhabitant being the
party of the Second Part (hereinafter referred to as the "Retiring Partner")

Contd2/-

Hemrajani

Choudhari

Kamlesh



General Stamp Office Mumbai

1. S. V. MAHARASHTRA

11 MAR 2008

Proper Officer

Smt. L. B. Sarmalkar

श्री. विजय गोविंदजी ठक्कर

★ परवाना धारक मुद्रांक विक्रेता ★

हु. नं. ४, न्यू मोची बिल्डिंग, अंदाजी धाम मंदिराजवळ,

म. नं. ४०२, मुमुन्ड (प.)

क्रमांक दिनांक

सर्वश्री/श्री/श्रीमती

वांना रु. या न्यायकेदार मुद्रांक विक्रेता

२१६७८९९९

परवाना धारक मुद्रांक विक्रेता

27 MAR 2008

BA 181196

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WHEREAS the continuing partners were carrying on business under partnership deed dated 19.7.2002. in the firm name and style of **M/S. GLASS WALL SYSTEMS** Whereas retiring partner has joined the partnership vide partnership deed dated 1.4.2004 and since then the parties hereto have been carrying on a business in partnership in the firm name and style of **M/S. GLASS WALL SYSTEMS** in terms of the partnership deed dated 1-4-2004. and has given Notice of his intention to retire from the partnership dated 25.2.2008 to each of the Partners of the First Part.

Contd3/-

[Signature]

[Signature]

[Signature]



General Stamp Office Mumbai

MAHARASHTRA

11 MAR 2008

Proper Officer

Smt. L. B. Sarmalkar

श्री. विजय गोविंदजी ठक्कर

परवाना धारक मुद्रांक विक्रेता

द. नं. ४, नु मोची विन्डींग, अंबाजी धाम मंदिराजवळ,

एम. जी. रोड, मुलुंड (प.)

क्रमांक ९९९३ दिनांक

सर्वश्री/श्री/श्रीमती

यांना रु. १०० या न्यायिक मुद्रांक पेपर विक्रीसाठी

- 3 -

27 MAR 2008

BA 181197

AND WHEREAS the party hereto of the Second Part being the "Retiring Partner", viz. **SHRI DAVE KAILASH REWASHANKAR** has expressed his desire to retire from the said partnership of **M/S. GLASS WALL SYSTEMS** with effect from closing of business hours on **31-3-2008**.

AND WHEREAS the parties hereto being the "Continuing Partners" have agreed to his retirement from the said partnership of **M/S. GLASS WALL SYSTEMS** on the terms, conditions and stipulations mutually here before agreed upon between them.

AND WHEREAS the parties hereto are desirous of recording the said terms and conditions into writing.

Contd4/-

Munewar

[Signature]

[Signature]



General Stamp Office Mumbai

S.V. Maharashtra

11 MAR 2008

Proper Officer

Smt. L. B. Parmalkar

★ परवाना धारक मुद्रांक विक्रेता ★

कु. नं. ४, न्यु मोची विन्डींग, अंशजी धाम मंदिराजवळ,
एम. जी. रोड, मुलुंड (प.)

क्रमांक ९९९१ दिनांक

सर्वश्री/श्री/श्रीमती

बांना रु. न्यायिकतर मुद्रांक पेपर विक्रेता

२५६७८९९९

परवाना धारक मुद्रांक विक्रेता

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IT IS NOW HEREBY WITNESSETH AS UNDER :

1. The "Retiring Partner" has retired from the partnership of **M/S. GLASS WALL SYSTEMS** with effect from closing of business hours on **31-03-2008**.
2. This agreement is effective from closing of business hours **31-3-2008**.
3. That all the business operations/accounts of the said firm till the date of the retirement are completely verified and scrutinized by the parties. The Balance Standing to credit/debit in Capital account, Current Account, Loan account will be paid to the party of the second part latest by signing of such final accounts.

[Signature]

[Signature]

Contd5/-

[Signature]



General Stamp Office Mumbai

MAHARASHTRA

11 MAR 2008

Proper Officer
Smt. L. B. Sarmalkar

श्री. विजय गोविंदजी लुक्कर

★ परवाना धारक मुद्रांक विक्रेता ★

दु. नं. ४, न्यु मांजी विल्डींग, अंगवजी घास मंदिराजवळ,

सम. जी रोड, मुलुंड (प.)

क्रमांक ९६९३ दिनांक २७ MAR 2008

सर्वश्री/श्री/श्रीमती

यांना रु. १००/- न्यायिक मुद्रांक देण्यात आला

२५६७८९८९

परवाना धारक मुद्रांक विक्रेता

- 5 -

4. That the parties hereto shall further be liable for their respective individual Income-tax liabilities for the entire period during which they were partners of the firm. All assets, liabilities, receivables and payables as on 31.3.2008 and farther accruals shall be privilege and obligations of the party of the first part only, whereas party of the second part is deprived and relieved form the same from closing of business hours on 31.3.2008. However party of the second part is entitled to the Balance Standing to credit/debit in Capital account, Current Account, Loan account, including profit after all taxes and adjustments for the year ended 31.3.2008, standing in the books of M/s Glass Wall Systems as on 31.3.2008.

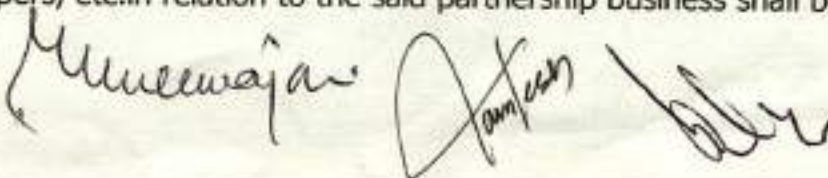
Musammar

[Signature]

[Signature]

Contd6/-

5. The Continuing Partners shall be entitled to carry on the business of the partnership firm in the name and style of " M/s. Glass Wall Systems" or any other name as they may think fit and proper. The Party of the Second Part hereby undertakes not to start and/or carry on any business in the same name or in any name similar to and/or resembling the name of "M/s. Glass Wall Systems" The Party of the Second Part hereby further agrees and undertakes not to directly and/or indirectly compete with the business of the partnership firm being carried on by the Party of the First Part in so far as its present tenders, present bids, on-going contracts/projects and work orders already obtained are concerned, including by way of consultancy or otherwise. However, the Party of the Second Part shall be free to start similar business for new tenders The Party of the Second Part further agrees and undertakes not to use the logo or the proprietary drawings and designs and other confidential information and material belonging to the partnership. Both parties agree and undertake henceforth not to represent to any third party that the Party of the Second Part is a partner in the partnership firm.
6. That all the parties hereto do hereby agree to extend all co-operation as may be called for in finalization of Income- tax, Vat-tax, Excise and Service tax, Entry Tax, Octroi, assessment and also co-operate in completing pending procedures with other Government & semi government agencies such as Octroi dept, Cess dept. MIDC, CIDCO, BMC, Property Registrar, Registrar of firms, ESIC dept., PF dept. Factory inspectors, police dept. etc. and shall be equally co-operative in collection of the debts due to the firm and shall sign necessary application, documents, papers, etc. as may be required.
7. It is hereby agreed and understood that the books of accounts of the partnership along with all other relevant records such as correspondence, files, literatures, documents, designs, floppy discs, electronic media, photographs, papers, etc.in relation to the said partnership business shall be handed over to the

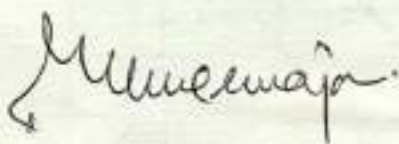


Contd7/-

party of the First Part hereto. It is agreed that the party of the First Part shall be liable to keep in their custody in trust for party of the Second Part hereto all the above said documents and other relevant records for the period of at least Six years hereafter.

It is further agreed that the party of the Second Part hereto shall be entitled to ask for copies, extracts, inspection, etc. of such records from the party of the First Part hereto at any time as he may desire and find it necessary and the continuing partners undertake to provide for the same within a reasonable time of such request by the retiring partner.

8. The Retiring Partner doth hereby assign release unto the Continuing Partners all his share, right, title and interest in all the said firm of Messrs Glass Wall Systems constituted under the said hereinbefore recited Deed of Partnership dated the 1.4.2004 and in all the properties, assets, credits, effects, securities, permits, licenses, quota rights, ownership rights, trade name and goodwill and contracts entered into and works executed and work-in-progress and deposits paid and moneys and properties due to the said firm to hold the same unto the Continuing Partners absolutely.
9. The Continuing Partners do and each of them doth hereby release the Retiring Partner from all actions, accounts, claims and demands in relation to the said partnership constituted under the said Deed of Partnership dated 1.4.2004 and from all the covenants, agreements, matters and things in the said hereinbefore recited Deed of Partnership.
10. In order to enable the Continuing Partners to get in and receive the partnership estate, assets, effects and premises, the Retiring Partner doth hereby irrevocably appoint the Continuing Partners and each of them jointly and severally his true and lawful attorneys in their names solely or jointly with and/or in the name of the said firm of Messrs Glass Wall Systems or otherwise

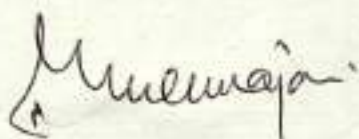


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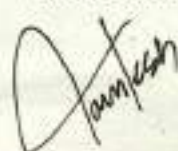
to ask, demand, sue for, recover and receive and to sign and give full and effectual receipts and discharges for all and singular the debts, estates and effects of or due or owning or anywise belonging to the said partnership or any part thereof and otherwise to act in the premises for the purposes aforesaid as the Continuing Partners may think proper and generally to use, take and prosecute every or any method or expedient whatsoever for recovery and receiving the said partnership estate, assets, debts and effects or any part thereof in as full, ample and beneficial a manner as the Retiring Partner and Continuing Partners might or could jointly have done in case the Retiring Partner had continued to be a partner in the said Partnership

11. The Continuing Partners do and each of them doth hereby jointly and severally covenant with the Retiring Partner that they the Continuing Partners will at all times hereafter bear and pay and discharge all the debts and liabilities including tax liabilities of the said firm and indemnify and keep indemnified the Retiring Partner from all actions, proceedings, claims, costs, charges, expenses and demands in respect thereof.

12. All disputes and questions whatsoever relating to this agreement arise between the parties hereto or between one or more of them and the legal representatives of other or others or between their respective legal representatives touching this deed or the construction or application thereof or any Clause or thing herein contained or any account, valuation or division of assets, debts or liabilities to be made hereunder or as to any other matter in anyway relating to the partnership business or the affairs thereof or the rights, duties or liabilities of any person under this deed shall be referred to arbitration in accordance with and subject to the provisions of the Indian Arbitration and Conciliation Act, 1996 or any statutory modification or re-enactment thereof for the time being in force.



Contd9/-



IN WITENSS WHEREOF the parties hereto have hereunto subscribed their respective hands and signatures on the day hereinabove mentioned.

SIGNED, SEALED AND DELIVERED

by the within named **"Continuing Partners"** viz.

i) **SHRI HEMRAJANI JAWAHAR HARIRAM**

Hemrajani

(ii) **SHRI CHOUDHARI KAMLESH ARJUN**

Kamlesh

P.N. Sheth

In the presence of PARAG N. SHETH. (C.A.)
17, Haji Habib Bldg, 2nd Fl., 182 Nizam X Road
Dadar - T.S. Mumbai - 40.

SIGNED, SEALED AND DELIVERED

by the within named **"Retiring Partner"** viz.

i) **SHRI DAVE KAILASH REWASHANKAR**

Dave

In the presence of Pranod S. Prashudesai. Special Agent
Flat 604, Kamfati Darshan CHS Ltd. Chayle Nagar,
Borivli - East, Mumbai - 400 066
